



File No.: EXP202310399

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST:

On July 4, 2023, a complaint was filed with entry registration number REGAGE23e00044414781 before the Spanish Agency for Data Protection against the GENERAL DIRECTORATE OF POLICE with NIF S2816015H (hereinafter, D.G.POL.). The reasons for the complaint are as follows:

The complainant, who (...) from CEPOL (European Agency for Police Training), refers to unauthorized access to their health data contained in the SIGESPOL file by a medical professional from the respondent. It states that, through a Resolution dated ***DATE.1, the initiation of a retirement procedure (...) against the complainant was agreed upon, the origin of which is an internal note from the Health Area (Occupational Health), signed by the aforementioned medical professional, which states that "After reviewing the clinical-labor documentation of the National Police Officer Ms. A.A.A., this Area proposes the initiation of the appropriate procedures for evaluation by the Medical Tribunal of the National Police, for the purpose of a possible change of administrative situation to JIF."

It considers that their health data has been processed without their consent, without legal authorization, and for a purpose different from that for which the data was collected. It refers to alleged discrimination based on their sexual orientation and their connection with the JUPOL union, (...).

No additional documentation is provided.

SECOND:

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGD), the aforementioned complaint was forwarded to D.G.POL., for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on July 24, 2023, as evidenced by the acknowledgment of receipt in the file.

On August 8, 2023, the respondent submitted a written response to the forwarding of the complaint in which it stated, among other aspects: "That the Register of Data Processing Activities of the Ministry of Interior, on page 66 and following, contains all the data that, in accordance with current regulations, must be published regarding the data processing carried out in the SIGESPOL file.

That on the aforementioned page 66, the legal basis (legitimization) is stated as follows: Organic Law 9/2015, of July 28, on the Personnel Regime of the National Police, Organic Law 4/2010, of May 20, on the Disciplinary Regime of the National Police Corps, Royal Legislative Decree 5/2015, of October 30, which approves the consolidated text of the Basic Statute of Public Employees, Organic Law 2/1986, of March 13, on Security Forces and Bodies.

Regarding the circumstance that raises the prohibition for processing special categories of data, it must be taken into account that according to the provisions of paragraph h) of Article 9 of the GDPR, one of the reasons for which the processing of health-related data is legally permitted is: "h) the processing is necessary for the purposes of preventive or occupational medicine, the assessment of the worker's capacity, medical diagnosis, the provision of health or social care or treatment, or the management of health and social care systems and services based on Union law or the laws of the Member States or under a contract with a health professional, without prejudice to the conditions and guarantees set out in paragraph 3."

That paragraph 3 of Article 9, to which point h) of the same article refers, states: "3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h) when their processing has been carried out by a professional subject to the obligation of professional secrecy or under their responsibility, in accordance with Union law or the laws of the Member States or

with the rules established by the competent national authorities.

The medical data of police officers are included in their personal files contained in the SIGESPOL file. That the medical data of police officers, although included in the SIGESPOL file, are archived in a specially protected section with very restricted and controlled access for those officials who, by virtue of their functions and in accordance with current regulations, may have access to them.

In accordance with the above, it must be taken into account that not all police officers have access to SIGESPOL and that not all officials with access to SIGESPOL can consult the complete files of other officials, in such a way that there is a limitation on consultations, which is not only functional, regarding the type of data that each official can consult, but also territorial, so that officials, except for those who by their functions have exceptional access to...

3/18

to consult the file with all officials at the national level, such as the Health Area or the Personnel Division, but always with the limitation of only accessing the necessary data in accordance with the functions of their job position, the rest of the officials assigned to peripheral agencies only have access to the data of the officials assigned in the territorial area where they perform their functions.

That the SIGEPOL application is designed and organized in such a way that at all times the rights recognized by the current data protection regulations are protected, so that each official granted access to this application is authorized to consult the data directly related to the functions they perform according to their job position; in this way, access to medical data, which is specially protected data of all police officials, is only granted to officials assigned to the Health Area, which was organically dependent on the Personnel Division until the entry into force of Order INT/859/2023, of July 21, which develops the organizational structure and functions of the central and territorial services of the General Directorate of the Police, which now depends on the General Subdirectorate of Human Resources and Training, within the Unit for Coordination of Occupational Risk Prevention and Socio-Health Protection; likewise, officials from the Regional Health Units have access to the health data of officials who are assigned to the police facilities existing in the territorial area where they perform their functions.

Regarding the purpose of the processing, it is recorded in the Treatment Activities Register of the Ministry of Interior (...), however, it is noted that the first of the purposes of the processing recorded in the aforementioned RAT is the "management of matters related to the human resources of the General Directorate of the Police (...)" among which is the control of the attitude of police officials for the performance of their functions as provided in Article 80 of Organic Law 9/2015, of July 28, on the Personnel Regime of the National Police, transcribing point 1 of the same.

That at all times the regulatory data protection regulations are observed and measures and guarantees are adopted for the protection of the rights and freedoms of individuals; in the aforementioned RAT of the Ministry of Interior, all data required by regulation regarding the SIGESPOL file is recorded.

Regarding "the categories of data subjects," as stated in the point with the same designation in the RAT of the Ministry of Interior related to SIGESPOL, they are "public employees."

As for the "Impact Assessment," it was not carried out since the data processing of SIGEPOL is considered not to constitute a high risk to the rights and freedoms of individuals, as access to the data is limited to those persons authorized for this purpose, who access with the username and password assigned to them, with all queries made being recorded, including who carried them out and what was consulted.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/18

It should be noted that no automated consultations are carried out; all are conducted by individual officials who are clearly identified.

It should also be pointed out that in the case of the SIGEPOL file, none of the requirements set forth in Article 35.3 of the General Data Protection Regulation, which regulates the circumstances under which an impact assessment is mandatory, are met. Regarding the decision made concerning the complaint at hand, the first measure taken was to conduct an audit regarding the consultations made on the

medical data of Ms. A.A.A. recorded in the SIGEPOL application since (...). It is confirmed that, apart from three (3) consultations made by Ms. A.A.A. herself, all other consultations were conducted by officials assigned to the various services of the Health Unit, including the official specifically mentioned by the complainant, (...).

Based on the above, it is established, according to the data obtained, that all consultations made on the medical data of Ms. A.A.A. were conducted by individuals who, under current regulations, are authorized to do so, and specifically regarding the medical professional referred to by the interested party, she is authorized, in accordance with the regulations, to access the medical data of the complainant, as she is (...) of the National Police.

As noted throughout this document, what Ms. A.A.A. qualifies as unauthorized access to her medical data has been verified and justified as not being the case. Furthermore, this Management Body has taken all measures to guarantee the rights and freedoms of the complainant concerning data protection, which have been effective, as previously mentioned. The audit conducted to verify the individuals who accessed the medical data of the official in question over the last five and a half years has shown that, in areas of greater quality and guarantee, the complaint has led to the audit being traced back to the year 20XX. It is recorded that only officials with legal authorization to access those medical data, namely officials assigned to the Health Area of the National Police, have accessed those medical records, in addition to the three accesses made by the interested party herself.

From Ms. A.A.A.'s written statement, it can be inferred that her disagreement is more related to the initiation of the administrative status change procedure than to the access to the data itself, since from the outset it is referenced that it is the result of that medical data consultation carried out by a medical professional assigned to the Health Area, by virtue of which the aforementioned medical professional prepares the Clinical Work Report from which the proposal for the Health Area to initiate the appropriate procedures for evaluation by the Medical Tribunal of the National Police for a possible change of administrative status arises.

It is noted that the aforementioned procedure has already been resolved in the terms notified to the interested party (...).

All communications made regarding the previously mentioned procedure were carried out by sending them in a sealed envelope addressed to C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/18

interested party, with the confidentiality seal, to the template in which at that moment was assigned to Ms. A.A.A., thereby guaranteeing the rights and freedoms related to the protection of personal data of the official.

In relation to the measures adopted to prevent similar incidents, it means that it has been confirmed that all accesses and consultations of the medical data of Ms. A.A.A., which have been carried out by persons legally authorized for this purpose, are such that the measures currently established are effective and sufficient to guarantee the security of personal data; however, it is maintained that there is continuous control and monitoring to ensure compliance with current regulations so that, should any incident arise, it can be resolved as quickly as possible and the necessary measures can be put in place to prevent it from happening again.

THIRD:

On September 28, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH:

The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

On May 17, 2024, the complainant was requested to provide:

“1.- Justifying documentation that the medical data of police officials, although recorded in the SIGESPOL file, are archived in a specially protected section with very restricted and controlled access for those officials who, by virtue of their functions and in accordance with current regulations, may have access to them. (With express indication of what special protection measures are applied to the section where the medical data of police officials are collected. Justifying documentation of the very restricted and controlled accesses to those files).

2.- Justifying documentation of the audit regarding the consultations made on the medical data of Ms. A.A.A., which have given rise to (...), as well as the permissions granted for those accesses to be made, from (...).

3.- Any other documentation deemed appropriate.”

On May 28, 2024, a written response to said request was entered into the AEPD registry, in which the following is stated:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/18

“That by means of a letter dated 04/08/2023, a response was given to the initial information request from the Spanish Agency for Data Protection, forwarded to this Personnel Division by letter from that National Central Office with R. Exit No. ***NUMBER.1, dated July 25, 2023.

That in said report it was specified that the medical data of police officials are found within their personal files in a specially protected section with restricted and controlled access for those officials who, by virtue of their functions and in accordance with current regulations, may have access to them. That the management of the assignment, control, and withdrawal of users and permissions is carried out directly from this Personnel Division, from the IT Department that reports directly to the Secretary General of the Personnel Division, Responsible for SIGESPOL according to Order INT/859/2023, of July 21, which develops the organizational structure and functions of the central and territorial services of the General Directorate of the Police. As is also stated in the current RAT of the Ministry of the Interior.

That the user management procedure, in this case, users with privileged access to health data (DATA Q in SIGESPOL), is as follows:

The personnel bodies of the different Units are those who request from the IT Department of this Division the granting of a PERM user (access for modification and consultation of health data) to a specific official from their staff, who must have an assigned job position that requires such a user for the performance of their functions.

This Department requests a report from the Health Area of the Occupational Risk Prevention and Socio-Health Protection Unit, which must endorse or approve the request, based on the determination of whether that official in that Unit performs tasks for which the required level of access is essential. Once the Health Area gives its approval, the access is granted.

Furthermore, all users are managed by a specific application where the user data, their profiles, and the privileges and level of access granted by the assigned profile, including the authorized consultation scope (national, regional, provincial, local, etc.) are stored.

On the other hand, these users with privileged access to medical data are conditioned in such a way that, for example, if a certain period of time passes without use, it becomes disabled. Likewise, if there is a change of destination for the official and, therefore, a change in their functions.

As of today, there are (...) individuals who have authorized PERM users in some of the 255 police templates that exist nationwide.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

On the other hand, it was made explicit that an audit was conducted regarding the inquiries made into the personal file of Ms. A.A.A. during the date range specified by the AEPD in its document, confirming that all inquiries into health data were made by authorized officials with granted access, and from different instances of the health units as they were competent and had a professional interest in the same. Furthermore, these correspond to the logical and consequential accesses in accordance with the health and administrative procedures in which Ms. A.A.A. was involved during that date range. Additionally, there is no record of any transfer of health data.

Specifically, access has been confirmed for consultation, modification, or loading of electronic documents related to functions inherent to the control of absenteeism, requests for medical recognition, medical evaluation, cause-effect recognition procedures, initiation of procedures, and medical tribunal.

Relevant documentation provided by the responding party:

- No documentation has been provided regarding the facts contained in its response to the request.

On 29/05/2024, a second request for information was made in which the following was requested:

“1.- Certification that although the medical data of police officials are recorded in the SIGESPOL file, they are archived in a specially protected section with very restricted and controlled access for those officials who, by virtue of their functions and in accordance with current regulations, may have access to them.

2.- Certification of the special protection measures applied to the section where the medical data of police officials are collected, indicating what measures have been applied and that they comply with Royal Decree 311/2022, of May 3, which regulates the National Security Scheme.

3.- Certification of why those measures are applied and not others. (This can be justified with the Data Protection Impact Assessment that has been carried out, if applicable, or with the risk analysis conducted.)

4.- Certification of the audit conducted regarding the inquiries made about the medical data of Ms. A.A.A., which led to her retirement due to permanent incapacity, as well as the permissions granted for those accesses to be made, from (...).”

On 12/06/2024, a written response to this request was submitted, indicating among other arguments the following:

“In the personal complaint made by the complainant, who identifies themselves before the AEPD as (...) (CEPOL), they report an unauthorized access to health data by a licensed physician of the National Police assigned to (...), and the subsequent transmission without their express consent of the...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Claimant of an Internal Note to the Administrative Situations Service
(Documentation and Personal File Area of the Personnel Division),

where it was stated (verbatim): “After reviewing the clinical-labor documentation of the National Police Officer Ms. A.A.A., assigned to the Provincial Police Station of ***LOCALITY.1, this area proposes the initiation of the appropriate procedures for evaluation by the Medical Tribunal of the National Police, for the purpose of a possible change of administrative situation to JIF.”

Furthermore, it argued the lack of legal authorization by the Medical Officer for the processing of her data, and additionally, it added a “spurious” motivation for this access related to her union activity with the “JUPOL” union and her sexual orientation (data publicized by the claimant herself in her complaint), as well as the preparation of said Internal Note and the repercussions it had: the initiation of a procedure for a possible change of administrative situation, which ultimately did not occur. On the other hand, in the initial information request made by the AEPD, a period of one month is granted to obtain and send information.

In summary, the requested information includes: legal basis for the processing, purpose, adequate

safeguards implemented, category of interested parties and information provided to them, impact assessment conducted or reasons for not conducting it, decisions made regarding the complaint, report on the causes that led to the incident, as well as measures taken to prevent similar incidents and any other relevant information.

A response to this information request was already sent on August 4, 2023, via Outgoing Register No. ***NUMBER.2 addressed to the National Data Protection Central Office of the National Police, where arguments regarding the requested information were provided.

In this regard, it is reiterated once again that after inspecting the complaint and prior request for the respective information from the head of the Health Area, the legal authorization of the actions by the Medical Officer is verified, not only in the processing of health data but also in the communications made and in the procedure followed, all of which has the corresponding legal-legal support, as stated, and which is ordinary and consistent with the circumstances surrounding the claimant.

Specifically, and focusing exclusively on what the claimant alleges:

1. The Health Services of the National Police are authorized and obligated to ensure that members of the National Police maintain the necessary conditions for the performance of their duties, according to LO 9/2015, of July 28.

2. She is a Medical Officer authorized by virtue of her position to perform the functions granted by the corresponding regulations:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/18

a. Royal Decree 2/2010, of January 8, which modifies the General Regulation of Administrative Mutualism, approved by Royal Decree 375/2003, of March 28.

b. Modification of the Consolidated Text of the General Social Security Law, approved by Royal Legislative Decree 1/1994, of June 20.

c. Resolution No. 60 of July 13, 1990, of the Director General of the Police, establishing provisional rules on the organization, dependency, and functions of the Health Service of the DGP.

3. The referral of the aforementioned Internal Note, which, by the way, does not record any type of health data therein, is a completely ordinary procedure required by current regulations.

In this case, it is the Medical Tribunal of the National Police that is obliged to assess the existence of causes for the extension of the situation of Temporary Disability (IT) beyond twelve months. This is the situation that the claimant reached. As stated in the aforementioned General Social Security Law, it is the competent bodies to evaluate, qualify, and review the permanent incapacity of the worker (in the case of the National Police, the Medical Tribunal) that must issue the corresponding report to extend the situation of Incapacity for another six months before the 12 months of Temporary Disability.

This Division did not limit itself to verifying the specific facts reported by the claimant, but with the intention of guaranteeing their rights, it conducted a control over all accesses to the health data in SIGESPOL of the claimant's personal file, verifying that there had been no unauthorized access outside the appropriate procedures supported by the legal regulations that mandate them.

This verification was not only carried out from the year 20XX, the time of the aforementioned Internal Note, but the timeframe of the facts was significantly extended, checking the previous 5 years (...).

After the submission of the first report on August 4, 2023, a new document was received on May 20, 2024, via Outgoing Register No. ***NUMBER.3 of 05/17/24 from the SGGT, requesting additional information regarding the aforementioned claim signed by the claimant in ***LOCALITY.2, on June 28, 20XX.

In it, it is requested that within 10 days, documentation be submitted to prove that the medical data is archived in a specially protected section with restricted and controlled access for those officials who, by virtue of their functions and in accordance with current regulations, may have access to them. Furthermore, it also requests supporting documentation of the audit regarding the consultations made.

All this information differs from the factual basis that supports the initial claim document: access to medical data by (...), a licensed physician, from (...), who had signed the Internal Note addressed to the Administrative Situations Service of this Personnel Division that initiated the process.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/18

administrative procedure consequent to assess the possible transition to retirement status. In response to this request, a report dated (...) 2024 with Exit Registration No. ***NUMBER.4 was sent to the National Data Protection Central Office, explaining the user management procedure for those health data of SIGESPOL, and certifying that the control carried out on the health data of the personal file in SIGESPOL, in the name of the claimant, which was conducted to provide greater assurance of the claimant's rights, did not show any evidence of unauthorized access, security breach, or use of any health data outside the legally established procedures.

After the submission of this report, three days later (...) the AEPD issued a new request through the same Inspector, granting a period of 10 days to provide new information.

In this regard, and beyond clarifying that the aforementioned A.A.A. is not retired due to permanent incapacity, as incorrectly specified in the second and third notifications from the AEPD, but is currently active and providing service, the corresponding report has been requested from the Information and Communications Unit of the General Subdirectorate of Logistics (Exit Registration No. ***NUMBER.5 dated 10/06/2024), responsible for the development, security, and custody of SIGESPOL.

This report will be sent when a response is received, which is not possible at this moment due to the short time frame granted.

Finally, regarding the inspection carried out on access to the personal file, medical data of the claimant, a total of (...) have accessed, all of them by virtue of the functions assigned to the Health Service or the Occupational Risk Prevention Area, either in the territorial demarcation where the interested party was assigned (**LOCALITY.1) or in the Central Bodies (Health Area and PRL Area), for one of the legally protected reasons: control of absenteeism, follow-up and evolution report of the IT, procedures for the cause-effect recognition file, request for medical recognition (occupational risks), Medical Tribunal or vaccinations, and which conforms to the procedures in which the claimant official has been involved.

Additionally, a report issued by (...) is included, requested at the time the statements made by the claimant in her writing were inspected, specifying the chronology of the medical and administrative procedures related to the claimant since the request for assessment by the Medical Tribunal of the National Police of capacity, and which shows the typical ordinary procedure in these situations.”

Relevant documentation provided by the responding party:

- Report issued by (...).

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

11/18

On 02/07/2024, the responding party submitted a new written extension of the response to the previous request in which it states that:

“The activity record of the processing of the Ministry of Interior includes the processing of data from the DGP “SIGESPOL”. In this activity record, the security measures are identified as MEDIUM level.

Likewise, in the categorized inventory, document “***DOCUMENT.1 Categorized Inventory”

SIGESPOL is listed as level (...). However, all information systems maintained by the DGP, including SIGESPOL, are managed with (...) in all its dimensions of security (availability, integrity, confidentiality, traceability, authenticity, and traceability) according to the National Security Scheme (ENS). This is because all information systems (...), thus simplifying the management of security in a unified manner

for all information systems or information processing.

Following the principles of the need to know and minimum privileges in SIGESPOL as in other processes, users only have access to the information necessary to perform their functions, with the minimum privilege possible.

Specifically, medical data can only be accessed by medical services, establishing several levels of security:

- Only medical personnel have access to medical information.
- For medical personnel to access medical information, they must register in the system after justifying their performance and need to know. If affirmative, access control is granted.
- Additionally, their user must be profiled as belonging to the medical service group. - Furthermore, individual permissions must be granted to allow them to perform their functions.
- If non-medical personnel need information to carry out a file, they request a report from the medical personnel for that purpose.

The security measures applied are aligned with the risk analysis carried out on the information systems and with the corresponding risk treatment plan (action plan). As evidence, covers and indexes of both documents are attached.”

On 16/10/2024, the responding party submitted a new supplementary writing in which it states among other aspects the following:

“That the Department of Informatics, which directly depends on this General Secretariat, is responsible for the SIGESPOL Processing according to Order INT/859/2023, of July 21, which develops the organic structure and functions of the central and territorial services of the DGP and as also stated in the Activity Records of Processing of the Ministry of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/18

The Interior Ministry manages the assignment, control, and withdrawal of users and access permissions to the SIGESPOL application.

Annex I and Annex II provide screenshots of the application used for this management, confirming that Ms. B.B.B. is the holder of the user ***USER.1, with which she has access to the Health Services Menu ((...)), allowing her to access the address fields (DO) and all health data of all National Police officers, with an access profile corresponding to the centralized medical services of the DGP ((...)). This user profile corresponds to the functions associated with the job position she holds, (...). On the other hand, Annex III includes a printed copy of the report generated by the user control application in a query conducted at the end of July 2023, regarding the accesses of user ***USER.1 to the file of Ms. A.A.A. in SIGESPOL.

In this regard, it is important to note that the period audited was from 01/01/20XX until the arrival of the first communication from the AEPD, at the end of July 2023. It can be verified that, upon inspecting a period of almost 5 years, all queries made by Ms. B.B.B. were grouped within 3 months (30/03/20XX to 30/06/20XX) and were related to (...), initiation of procedure, and cause-effect recognitions. All of this constitutes the strictly necessary and timely procedures, even minimal, and fully coinciding with the chronology of the claimant's situation, and consistent with the subsequent medical and administrative procedures following the request for capacity assessment by the Medical Tribunal of the National Police, complying with the typical ordinary pattern in these situations, as explained in previous communication, and as evidenced in the procedures detailed in the report (...) already submitted by this Division. There are no other queries made by user ***USER.1 at any other time during those five years regarding that health data.

Furthermore, in Annexes IV, V, and VI, screenshots of the application are shown where the access by user ***USER.1 to the claimant's data is recorded, indicating the date of access, type, reason, etc.

...

Regarding this last point, three accesses referenced in the report have been randomly selected, with three screenshots taken; however, there is obviously documentation and similar records for the other

accesses listed in the report that constitutes Annex III.

Relevant documentation provided by the responding party:

- Annex I and Annex II contain screenshots of the application used to demonstrate that Ms. B.B.B. is the holder of user ***USER.1, with which she has access to the Health Services Menu ((....)), allowing her to access the address fields (DO) and all health data of all National Police officers, with an access profile corresponding to the centralized medical services of the DGP ((....)).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/18

- Annexes IV, V, and VI contain screenshots of the application where the access by user ***USER.1 is recorded.

LEGAL GROUNDS

I Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Legitimacy of the processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In this case, the claimant believes that her health data has been processed without a legal basis, as she did not provide explicit consent, and refers to unauthorized accesses by a physician of the responding party to her health data contained in the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/18

SIGESPOL file, application where personal files are collected, including medical data, of police officers. Furthermore, it considers that their data was processed without legal authorization and for a purpose different from that for which the data was initially collected, which would now be to initiate the appropriate procedures for evaluation by the Medical Tribunal of the National Police, for the purpose of

a possible change of administrative status to Retirement due to Physical Incapacity.

Information regarding this aspect was requested from the responding party, and a written response was received by this Agency on 08/08/2023, clarifying that the legal basis for the processing would be contained in the Register of Treatment Activities (RAT) of the Ministry of the Interior and would be Law 9/2015, on the Personnel Regime of the National Police, Organic Law 4/2010, of May 20, on the Disciplinary Regime of the National Police Corps, Royal Decree 5/2015, of October 30, which approves the consolidated text of the Basic Statute of Public Employees, Organic Law 2/1986, of March 13, on Security Forces and Bodies.

Therefore, the bases for legitimizing the processing of the data contained in the SIGESPOL file would be those established in Article 6.1, paragraphs c) and e) of the GDPR.

Regarding the authorization of the Medical Officer to access the personal data of the claimant, the D.G.POL. states that they were authorized to consult the data directly related to the functions they perform in accordance with their job position, including the medical data of police officers collected in the SIGESPOL application, to which only officials assigned to the Health Area have access, both from central services and from regional health units, and this access would be limited to the data of officials who are assigned to the police facilities existing in the territorial scope in which they perform their functions.

As for the purpose of the processing, it is stated in the RAT of the Ministry of the Interior. It is noted that the first of the purposes of the processing listed in the RAT is the management of matters related to human resources of the General Directorate of the Police, among which is the control of the fitness of police officers to perform their functions, in accordance with Article 80 of Organic Law 9/2015, of July 28, on the Personnel Regime of the National Police, which states in point 1 that "The National Police will ensure that its members maintain the necessary psychophysical conditions for the performance of their functions. To this end, there will be a health service whose competencies and organization will be developed by regulation."

Therefore, based on the information available, this Agency considers that no evidence has been found to substantiate a possible infringement of Article 6 of the GDPR.

III Processing of special categories of personal data

Article 9 of the GDPR, which regulates the processing of special categories of personal data, establishes the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/18

"1. The processing of personal data revealing ethnic or racial origin, political opinions, religious or philosophical beliefs, or trade union affiliation is prohibited, as well as the processing of genetic data, biometric data aimed at uniquely identifying a natural person, health-related data, or data related to the sexual life or sexual orientation of a natural person.

2. Paragraph 1 shall not apply when one of the following circumstances occurs:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except when Union law or the laws of the Member States provide that the prohibition mentioned in paragraph 1 cannot be lifted by the data subject;

b) the processing is necessary for compliance with obligations and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent that it is authorized by Union law or the laws of the Member States or a collective agreement under the law of the Member States that establishes adequate safeguards for the respect of fundamental rights and the interests of the data subject;

c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;

d) the processing is carried out, within the scope of its legitimate activities and with appropriate safeguards, by a foundation, association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to current or

former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not communicated outside of them without the consent of the data subjects;

e) the processing concerns personal data which the data subject has made manifestly public;

f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial functions;

g) the processing is necessary for reasons of substantial public interest, based on Union law or the laws of the Member States, which must be proportional to the pursued objective, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

h) the processing is necessary for preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care or treatment, or management of health and social care systems and services, based on Union law or the laws of the Member States."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/18

members or by virtue of a contract with a healthcare professional and without prejudice to the conditions and guarantees set forth in paragraph 3;

i) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border health threats, or to ensure high standards of quality and safety of healthcare and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when such processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the laws of the Member States or with the standards established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the laws of the Member States or the standards established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health."

In this specific case, and with respect to health data, it has been established in the investigation proceedings that the aforementioned healthcare professional (...) is a licensed medical professional authorized by virtue of their position to perform the functions granted by the relevant regulations:

a. Royal Decree 2/2010, of January 8, which amends the General Regulation of Administrative Mutualism, approved by Royal Decree 375/2003, of March 28.

b. Amendment of the Consolidated Text of the General Law on Social Security, approved by Legislative Royal Decree 1/1994, of June 20.

c. Resolution No. 60 of July 13, 1990, of the Director General of the Police, establishing provisional rules on the organization, dependency, and functions of the Health Service of the DGP.

That is to say, access to the medical data of the claimant would be justified in one of the circumstances that lift the prohibition on processing special categories of data, as it must be taken into account that, according to the provisions of paragraph h) of Article 9 of the GDPR, one of the reasons for which the processing of health-related data is fully permitted is: "h) the processing is necessary for the purposes of preventive or occupational medicine, assessment of the worker's capacity for work,

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/18

medical diagnosis, provision of health or social assistance or treatment, or management of health and social care systems and services, based on Union Law or the laws of the Member States or pursuant to an agreement with a healthcare professional and without prejudice to the conditions and guarantees set forth in paragraph 3." Paragraph 3 of Article 9, to which point h) of the same article refers, states:

"3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when such processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union Law or the laws of the Member States or with the standards established by the competent national authorities or by any other person also subject to the obligation of secrecy in accordance with Union Law or the laws of the Member States or the standards established by the competent national authorities."

On the other hand, the healthcare professional was assigned, in accordance with the procedure established by the D.G.POL., a user profile in the SIGESPOL application that corresponds to the functions associated with the position they hold, which enables access to the data of the complainant, and it has been demonstrated, as reflected in the investigation proceedings, that in the accesses made with that user code, the date of the accesses, type, reason, etc., are recorded, showing the typical ordinary procedure in these situations.

Therefore, this Agency considers that, with the available information, no evidence has been found that substantiates a possible violation of Article 9 of the GDPR concerning the processing of medical data of the complainant.

IV Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing, in accordance with what has been indicated, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the GENERAL DIRECTORATE OF THE POLICE and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

18/18

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Lorenzo Cotino Hueso
President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es